

25NNCV01175 25NNCV01175

County: los-angeles

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Case Number: 25NNCV01175 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR ATTORNEY'S FEES

Hearing Date: 9/18/26

CASE NO.: 25NNCV01175

CASE NAME: Ghazarian v. FCA US LLC

Moving Party: Plaintiff Meghmik Meg Ghazarian

Responding Party: Defendant FCA US LLC

Notice: Sufficient

Ruling: GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a lemon law case. On February 21, 2025, plaintiff Meghmik Meg Ghazarian (Plaintiff) filed a Complaint against defendant FCA US LLC (Defendant) asserting violations of the Song-Beverly Act arising from the purchase of a 2023 Jeep Wrangler. On August 22, 2026, the matter was settled.

On March 10, 2026, Plaintiff filed the instant motion seeking payment of attorney's fees and costs pursuant to the settlement. On September 9, 2026, Defendant filed an opposition. On September 11, 2026, Plaintiff filed a reply.

LEGAL STANDARD

A prevailing party is entitled to recover costs, including attorneys' fees, as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)¹

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)² Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (*Id.* at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96.)³

The factors considered in determining the modification of the lodestar

include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.)

“The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.) “A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Plaintiff seeks

to recover attorney fees and reimbursement costs from Defendant pursuant to the Song-Beverly Act and the signed CCP 998 settlement offer. (Mot., p. 2.) Plaintiff seeks a total lodestar figure of \$16,677.50 consisting of 37.2 hours. (Kamana Decl., ¶¶ 18-20.) Plaintiff does not seek a multiplier; the Court will not award one. Plaintiff indicates reserving their plans to submit a memorandum of costs but as of September 14, 2026, has not done so. (Reply, p. 2.) Accordingly, the Court will not award a multiplier or costs.

Prevailing Party

Plaintiff argues

they are entitled to attorney’s fees because the matter resulted in settlement and the 998 states that Plaintiff is the prevailing party for purposes of the anticipated fee motion. (Mot., pp. 4-5.)

The Court

finds—and Defendant does not dispute—that Plaintiff is entitled to recover attorney's fees and costs from Defendant pursuant to the Song-Beverly Act and the parties' settlement. (Opp., p. 2.) Under the Song-Beverly Act, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).)

Hourly Rates

Plaintiff seeks

an hourly rate for the following individuals: (1) \$500/hour for attorney Fonseca-Kamana; (2) \$425/hour for attorney Gozalez; and (3) \$300/hour for attorney Flores. (Kamana Decl., ¶¶ 15-17.)

Plaintiff's primary

support for counsel's hourly rates is their corresponding years of experience and the firm's reputation in the area of Lemon Law. (Mot., pp. 7-8.)

In opposition, Defendant

argues that Plaintiff's desired rates are inflated. (Opp., p. 2.) Defendant argues that this matter was not complex, especially for attorneys claiming to be experts in the field and does not justify exorbitant rates. (Ibid.) Defendant argues that the court should apply the logic found in the Real Rate Report, and cap partner rates at \$500/hour and associate rates at \$200/hour. (Opp., p. 5.) Defendant argues that Plaintiff's associate counsel does not have the experience to justify a \$300/rate. (Ibid.)

In reply,

Plaintiff argues that their rates are reasonable in light of skill, experience, and reputation in the community. (Reply, p. 2.) Plaintiff argues that Defendant's proposed rates are too generalized and does not take these factors into account. (Reply, p. 3.)

The Court has

considered the declaration of Michelle Fonseca-Kamana. (Kamana Decl., ¶¶ 15-17.)

The Court has also reviewed the invoice provided by counsel. (Kamana Decl., Exh. B.) In light of the experience of Plaintiff's legal staff, the Court deems the following hourly rates reasonable: (1) \$500/hour for attorney and partner Fonseca-Kamana; (2) \$300/hour for associate attorney Gozalez; and (3) \$200/hour for associate attorney Flores.

Hours Expended

Plaintiff seeks

a lodestar figure of \$16,677.50 ((26.9 hours x \$500 rate = \$13,450 for attorney Kamana) + (1.1 hours x \$425 rate = \$467.50 for attorney Gonzalez) + (9.2 hours x \$300 rate = \$2,760 for attorney Flores)) for a total of 37.2 hours of work. (Kamana Decl., Exh. B.)

Plaintiff argues

that the amount sought should be awarded in full because the settlement provides for recovery, Plaintiff's counsel diligently worked toward resolving the dispute, and Plaintiff's counsel took the case on contingency. (Mot., p. 8.)

In opposition, Defendant

argues that several entries on counsel's invoice are duplicative and should be reduced. (Opp., pp. 5-8.) Defendant has identified several duplicative entries credited to both partner and associates. (Ibid.) Defendant argues that excessive time spent drafting and duplicative entries for attending the same hearings and reviewing the same documents must be reduced. (Ibid.) Defendant asks the court to award no more than \$8,640 in attorney's fees. (Opp., p. 10.)

In reply,

Plaintiff argues that Defendant fails to identify duplicative entries and does not present competent evidence that Plaintiff has cited time not actually spent. (Reply, pp. 3-4.) Plaintiff argues that this case required so many hours because of Defendant's failure to prioritize this case resulting in lengthy litigation through mediation. (Reply, p. 4.) Plaintiff argues that all entries correspond to time actually expended. (Reply, pp. 4-7.)

The Court is

persuaded by Defendant's argument surrounding duplicative entries. Most notably, the Court finds Plaintiff seeking \$2,480 in fees, reflecting 6.2 hours, for two attorneys attending a singular 3.1-hour long mediation excessive and duplicative. (Kamana Decl., Exh. B, pp. 6-7.)

The Court

acknowledges arguments made by both parties and, in its discretion, will reduce the lodestar figure to \$9,000. The Court finds that Plaintiff's legal staff reasonably expended a total number of 22 hours to commence and prosecute this action and to prepare the pending motion. Since the matter was settled early, prior to any discovery, and due to the straightforward nature of action, the Court will reduce requested fees of \$16,677.50 (37.2 hours) to \$9,000 ((15 hours x \$500 rate = \$7,500 for attorney Kamana) + (1 hours x \$300 rate = \$300 for attorney Gonzalez) + (6 hours x \$200 rate = \$1,200 for attorney Flores)) for a total of 22 hours calculated with reduced hourly rates.

Accordingly, the

Court finds a lodestar figure of \$9,000 reasonable. Plaintiff's Motion for Attorney's Fees and Costs is GRANTED.

CONCLUSION

AND ORDER

Plaintiff Meghmik

Meg Ghazarian's motion for attorney's fees is GRANTED

MOVING PARTY shall provide notice of

this order and provide a proposed order consistent with this ruling within 10 days from this date.